

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

MSC MEDITERRANEAN SHIPPING CO. SA, *Respondent*.

DOCKET NO. 23-12

Served: January 21, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

FOURTH AMENDED SCHEDULING ORDER

On January 16, 2025, the parties submitted a joint status report describing the status of discovery as well as a Fourth Joint Motion to Extend Deadlines, seeking a 30-day extension of the remaining deadlines from those established in the Third Amended Scheduling Order issued on December 11, 2024. The Commission has extended the deadline for issue of the initial decision by 10 months to September 29, 2025, and the parties now propose an amendment that concludes briefing of the case on August 22, 2025, 5 weeks before the initial decision is due. In support of their motion, the parties assert that they have exchanged over 3 million pages of documents which they need to review for depositions, they plan to take approximately 20 depositions, and the most recent 30-day extension was not adequate for the review, scheduling, and conduct of the depositions.

The parties also filed a Joint Status Report (“JSR”). In the report, the parties state that “the Parties’ Principals have engaged in settlement efforts, including two virtual settlement meetings, and have proposed dates and times for a third virtual settlement meeting with counsel in attendance.” JSR at 2. The parties have also “exchanged the names of witnesses who will be deposed in lieu of formal deposition notices, and depositions will be scheduled promptly if the matter is not resolved through ongoing settlement negotiations.” *Id.* Currently, the third virtual settlement meeting is scheduled for January 21, 2025.

Good cause exists to extend the schedule by 30 days. Specifically, because the parties have exchanged over 3 million pages of documents, have agreed to an informal procedure to schedule 20 depositions, and will move forward with the scheduling if negotiations for settlement fail, an extension is warranted.

Accordingly, the parties are **ORDERED** to follow the schedule set forth below:

March 21, 2025 Complete depositions of fact witnesses

March 21, 2025 Last day to serve interrogatories, requests for admission, and RFPs

April 7, 2025	Disclosure of initial expert reports, if any
May 7, 2025	Disclosure of rebuttal expert reports, if any
May 9, 2025	Joint status report identifying expert witnesses and summarizing the purpose of their testimony
June 9, 2025	Complete expert depositions
June 9, 2025	Close of discovery
July 9, 2025	Complainant's initial brief, proposed findings of fact, and appendix
August 8, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
August 22, 2025	Complainant's reply brief and responses to proposed findings of fact

The parties are encouraged to work within the above schedule as further requests for extension are unlikely to be granted.



 Linda S. Harris Crovella
 Administrative Law Judge